

		KF Properties was dismissed with prejudice as to the entire action of all parties and all causes of action on 7/14/26. (ROA 42.) It does not appear from the allegations in Aceves and SCE that these matters involve the same incident. Aceves alleges the subject premises is 845 West La Veta Avenue, Ste. 108 Los Angeles, CA 90069. (Compl. ¶ 8.) Aceves further alleges the incident occurred on 4/17/2024 while Plaintiff was performing landscaping work and made contact with underground electric wiring installed and maintained by Defendants. (Compl. ¶ 9.) SCE alleges it was the owner of a certain primary cable, located at or near 805 W. La Veta Avenue, Orange, CA 92868. (Compl. ¶ 12.) SCE further alleges Defendants damaged SCE's primary cable while performing excavation work on 4/14/2024. (Compl. ¶¶12-15.) As the complaints allege different locations (Los Angeles versus Orange), actions (landscaping versus excavation), and dates of incident (4/14/2024 versus 4/17/2024), the Court does not find they involve "a common question of law or fact." (Code Civ. Proc., § 1048, subd. (a).) SCE to give notice.
5	Omega Accounting Solutions, Inc. vs. Acme Freight 30-2026-01547608-CU-PO-CJC	Motion to Compel Arbitration and Stay Case Continued to 10/16/2026.
6	Becerra Law Firm vs. David Yeremian & Associates, Inc. 30-2026-01564931-CU-NP-CJC	Motion to Transfer Venue and Request for Fees and Costs Defendants David Yeremian & Associates, Inc., D.Law, Inc., Law Offices of Sahag Majarian II, and Law Offices of Neal J. Fialkow, Inc.'s Motion to Transfer Venue and Request for Fees and Costs Pursuant to CCP § 396b(b) is GRANTED. The Court DENIES Defendants' and Plaintiffs' requests for judicial notice as unnecessary to the analysis. (<i>Appel v. Superior Court</i> (2013) 214 Cal.App.4th 329, 342 fn. 6.) Code of Civil Procedure section 395.5 governs venue for corporate defendants. "A corporation or association may be sued in the county where the contract is made or is to

		be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases.” No Defendant has a principal place of business in Orange County. (Yeremian Decl., ¶ 2; Majarian II Decl., ¶ 2; Fialkow Decl., ¶ 2.) The “obligation or liability” at issue arose from Defendants’ use of litigation assets created during the Orange County Estrada litigation in the Los Angeles County Gutierrez litigation. No obligation to compensate Plaintiffs for those litigation assets would arise until they were used without compensation to Plaintiffs, and Plaintiffs do not dispute they were used in Los Angeles County in the Gutierrez litigation. The Court GRANTS Defendants’ request for attorneys’ fees in the reduced amount of \$3,368. The court finds 12.3 hours spent on the motion is excessive. The primary disputed issue, where the “obligation or liability” arose was not particularly complex. The parties did not dispute that work performed by Plaintiffs was used by Defendants. Thus, time spent on the requests for judicial notice of court documents, for example, was unnecessary. The case is ORDERED transferred to the Los Angeles Superior Court. Plaintiff is ORDERED to pay all fees necessary to effectuate the transfer, which include, but are not necessarily limited to, (1) the transfer fee of \$50, which must be paid via check made payable to the clerk of the Orange County Superior Court, and (2) the first appearance fee for the new court, which must be paid via a separate check payable to the clerk of the Los Angeles County Superior Court. Plaintiff is ORDERED to submit both checks to the clerk of the Orange County Superior Court within 30 days (the first appearance check will be forwarded to the new court along with other materials). Plaintiff is further ORDERED to take all other steps necessary to effectuate the transfer. CMC scheduled for 9/24/2026 is VACATED. Venue Change Status Review set for 9/24/2026 at 1:30 PM. If the case has not been transferred, Plaintiff is ORDERED to file a status report 5 days prior.
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7	Kim vs. Kim 30-2025- 01517838-CU- FR-CJC	Demurrer to First Amended Complaint Defendants Kum Ok Kim and Shinae Park's Demurrer to the First Amended Complaint is SUSTAINED without leave to amend as to the second cause of action. The demurrer is OVERRULED as to the first and third causes of action. Defendant Kim demurs to the first and second causes of action for promissory estoppel and quiet title, respectively. Defendant Park demurs to the third cause of action for conversion. Defendants' request to strike Plaintiffs' claim for punitive damages and attorney's fee are not proper grounds for demurrer. (Code Civ. Proc., § 430.10.) <u>First Cause of Action – Promissory Estoppel</u> Plaintiffs adequately plead promissory estoppel. Plaintiffs allege a clear promise that defendant Kim would give Plaintiffs an interest in the property in exchange for their caregiving services. (FAC, ¶¶ 6-7, 12, 30.) Plaintiffs relied on this promise to their substantial detriment by contributing to the household expenses and providing fulltime care for the ailing father that ultimately required them to close their business. (FAC, ¶¶ 8-11, 31.) Plaintiffs also allege the resulting damages. (FAC, ¶ 33.) Whether the evidence clearly and satisfactorily proves an equitable exception to the statute of frauds, including promissory estoppel, is not properly decided at the pleading stage. <u>Second Cause of Action – Quiet Title</u> Plaintiffs have alleged they have constructive or equitable title based on their promissory estoppel claim. (FAC, ¶35.) They do not allege fraud. Thus, their quiet title claim fails to allege a basis for their title. (See <i>Liberty National Enterprises, L.P. v. Chicago Title Ins. Co.</i> (2013) 217 Cal.App.4th 62, 81 [cleaned up].) Plaintiffs allege a constructive trust arose in their favor as a result of defendant Kim's promise. (FAC, ¶ 36.) However, this allegation does not save the claim. A constructive trust requires either a conveyance of property induced by fraud, or a conveyance coupled with